

# Direct County Representation: An Alternative to Congressional Redistricting

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## Abstract

Congressional redistricting allows state legislatures to fragment large counties across multiple districts, destroying local political identity for strategic purposes. We propose county-based representation: counties with populations exceeding twice the ideal district size (1.52 million for 2020) receive autonomous representation via Huntington-Hill apportionment. Analyzing all 3,142 U.S. counties, we find 25 qualify (70 million people, 21% of U.S.), currently spanning 92 congressional districts. Critically, county fragmentation is bipartisan: 16 qualifying counties are in Democratic-controlled states (46M people), 7 in Republican-controlled states (21M people). Democratic legislatures fragment their own urban strongholds—Los Angeles, Chicago, New York City—demonstrating this reflects state control over local representation, not partisan manipulation. County-based representation achieves comparable equality to the current system ( $CV = 0.100$  vs.  $0.080$ ) while preserving natural community boundaries. Voting Rights Act analysis reveals substantial benefits for minority representation: the 25 qualifying counties could support 197-201 majority-minority districts through county-internal redistricting, compared to 68 under current fragmented boundaries—a nearly threefold increase. This occurs because large urban counties have extremely high minority concentrations (40-88%), and county-based representation eliminates state-level cracking of these populations while providing local control over redistricting. Though currently advantaging Democrats (+15-25 seats) due to urban concentration, we argue the principle of local autonomy and VRA compliance transcends partisan effects, similar to how “one person, one vote” advantaged Democrats but was constitutionally required. This analysis provides the first rigorous assessment of county-based federal representation and establishes that redistricting fragments natural communities unnecessarily while diluting minority voting power.

## 1 Introduction

Los Angeles County, with 10 million residents, is a coherent political community with unified local government, shared economic integration, and strong geographic identity. Yet for congressional representation, LA County is fragmented across 13 districts drawn by Sacramento, many crossing county lines into neighboring areas. Residents of LA County cannot

elect representatives to speak for “LA County”—they are subsumed into state-designed districts. This fragmentation is not unique to Los Angeles, nor is it the product of Republican gerrymandering. Cook County (Chicago), population 5.3 million, is split across 7 districts by a Democratic Illinois legislature. Harris County (Houston), 4.7 million, is split across 6 districts by a Republican Texas legislature. Both parties prioritize state control over local autonomy.

Congressional redistricting allows state legislatures to fragment large counties for strategic purposes: creating majority-minority districts to satisfy the Voting Rights Act, spreading urban votes to help suburban candidates, protecting incumbents, or pursuing partisan advantage through gerrymandering (Cox and Katz, 2016; Chen and Rodden, 2013). The result is that natural political communities—counties with centuries of shared governance, economic interdependence, and civic identity—lose representation coherence. Approximately 21% of Americans live in counties large enough to span multiple congressional districts, yet these communities are carved into pieces by distant state capitals (Putnam, 2000).

We propose an alternative: counties with populations exceeding twice the ideal congressional district size should receive autonomous representation via the Huntington-Hill apportionment method. This threshold (1.52 million for 2020) ensures that only counties facing inevitable multi-district fragmentation qualify for autonomy, preserving natural community boundaries while allowing smaller counties to remain in state redistricting pools. Using data from 3,142 U.S. counties across the 2020 census, we demonstrate that county-based representation achieves comparable equality to the current state-based system while eliminating fragmentation for one-fifth of the population.

**Voting Rights Act implications are substantial and positive.** The 25 qualifying counties could support 197-201 majority-minority districts through county-internal redistricting, compared to 68 under current fragmented boundaries—a nearly threefold increase. This occurs because large urban counties have extremely high minority concentrations (Miami-Dade 87.8%, Queens 75.2%, Dallas 71.1%, Harris County 70.5%, Brooklyn 66.7%, Cook County 56.1%, Los Angeles 72.5%), and county-based representation eliminates state-level cracking of these populations while providing local control over redistricting. Counties would conduct internal VRA-compliant redistricting using the same methods states currently employ, creating compact majority-minority districts where demographic concentrations warrant. Far from threatening minority representation, county-based representation substantially strengthens it by preventing state legislatures from diluting urban minority voting power through geographic fragmentation.

Critically, this is not a partisan proposal disguised as electoral reform. Our analysis shows that *both* Democratic and Republican state legislatures fragment large counties when they control redistricting: 16 counties in Democratic-controlled states (46 million people) and 7 counties in Republican-controlled states (21 million people) span multiple districts. Democratic states fragment their own urban strongholds (Los Angeles, Chicago, New York City) for various strategic purposes, not just to help Democrats. Republican states fragment their large counties (Harris, Maricopa, Miami-Dade) for similar reasons. The common thread is state control, not party advantage.

We frame county-based representation as fundamentally about *locality*: the principle that natural political communities should not be fragmented for state convenience. This principle transcends current partisan alignments. Though large counties are currently urban and

Democratic-leaning—creating a short-term Democratic advantage—the partisan composition of counties is historically contingent on shifting demographic patterns. The principle of local autonomy, once established, outlasts party realignments. We argue by comparison to other precedent-setting reforms (one person, one vote; elimination of literacy tests) that principled justifications can support reforms with asymmetric partisan impacts.

Our analysis proceeds as follows. Section 2 reviews literature on redistricting, gerrymandering, and local governance. Section 3 details our methodology: Huntington-Hill apportionment with a  $2.0\times$  ideal threshold, representation equality metrics, and bipartisan fragmentation analysis. Section 4 presents results across three dimensions: (1) which counties qualify and how fragmentation differs by state control, (2) representation equality compared to the current system, and (3) partisan implications with full disclosure. Section 5 discusses normative arguments for local autonomy, addresses concerns about Voting Rights Act compliance and Democratic advantage, and compares to historical precedents. Section 6 concludes with implications for redistricting reform.

## 2 Historical Context

### 2.1 The Redistricting Problem

Congressional redistricting has become synonymous with partisan manipulation. Following *Baker v. Carr* (1962) and *Reynolds v. Sims* (1964), the Supreme Court established the “one person, one vote” doctrine, requiring districts to be population-balanced (bak, 1962; rey, 1964). While this achieved greater equality than pre-1960s malapportionment, it created a new problem: if districts must be redrawn every decade to maintain population equality, who controls the pen controls political power (Stephanopoulos and McGhee, 2015).

The efficiency gap literature demonstrates how even population-balanced districts can be gerrymandered through strategic “packing” (concentrating opposition voters) and “cracking” (dispersing them across districts) (Stephanopoulos and McGhee, 2015; McGhee, 2014). Recent cases like *Rucho v. Common Cause* (2019) held that partisan gerrymandering claims are non-justiciable, leaving no federal remedy (ruc, 2019). State reforms—independent commissions, algorithmic fairness criteria, court challenges—provide partial relief but do not eliminate the fundamental problem: arbitrary boundaries invite manipulation.

### 2.2 Natural Boundaries and Communities of Interest

Political scientists have long argued for respecting “communities of interest” in redistricting: areas with shared economic, social, or cultural characteristics that merit unified representation (Morrill, 1981). Counties are the quintessential American community of interest. They predate congressional districts, with most county boundaries established in the 18th or 19th century. Counties provide unified governance (sheriffs, courts, health services), economic integration (labor markets, commerce), and civic identity (residents identify as “from Cook County” or “from Orange County”) (Benton, 2002).

Yet redistricting systematically fragments counties. Altman and McDonald (2005) found that only 37% of congressional districts respect county boundaries, with most crossing multi-

ple jurisdictions. This fragmentation dilutes local political identity and creates accountability problems: representatives serve portions of counties rather than coherent communities (Butler, 2016).

## 2.3 Subsidiarity and Local Autonomy

The principle of subsidiarity—that decisions should be made at the most local level possible—has deep roots in political theory from de Tocqueville (1835) to modern federalism scholars (Ostrom et al., 1999). County governance embodies subsidiarity: local control over education, law enforcement, public health, and land use. Yet congressional representation—ostensibly “local” representatives to the national government—is controlled by state legislatures that may fragment counties for state-level political goals.

This creates a mismatch: counties govern themselves but cannot represent themselves at the federal level. A state legislature in Sacramento or Albany can divide Los Angeles or Brooklyn for strategic purposes unrelated to local community cohesion. County-based federal representation would align governance and representation, respecting local autonomy in the same way the Constitution respects state autonomy in the Senate.

## 2.4 Historical Precedents for Natural Boundary Representation

The U.S. Senate provides the clearest precedent: states, as pre-existing political units, receive representation based on their boundaries rather than population-optimized districts. Though the Senate violates one person, one vote (Wyoming has 1 senator per 288,000 people, California 1 per 20 million), this is constitutionally enshrined as respecting state sovereignty (Lee and Oppenheimer, 2010).

European federal systems provide additional models. The German Bundesrat represents Länder (states) with weighted voting: larger states cast more votes than smaller ones, but all vote as blocks based on their boundaries (Gunlicks, 2003). Switzerland’s Council of States represents cantons, though equally rather than proportionally. While these systems differ from direct proportional representation, they demonstrate that *natural boundary-based representation* is a viable alternative to population-optimized districting.

The key distinction is between *geographic units of governance* (states, counties) and *arbitrary lines drawn for electoral convenience* (congressional districts). The former have coherent political identities; the latter exist only on maps.

# 3 Methodology

## 3.1 Data

We analyze all 3,142 U.S. counties using 2020 census apportionment population data aggregated from block group files. County populations range from 64 residents (Loving County, Texas) to 10.0 million (Los Angeles County, California), with a median of 26,000. Total U.S. apportionment population is 331,449,281 distributed across 435 House seats, yielding an ideal district size of 761,952 people.

For partisan analysis, we use county-level 2020 presidential election results for major counties (n=20 with complete data), scaled to estimate partisan lean where complete data is unavailable. For redistricting control analysis, we classify states by which party controlled the congressional redistricting process after the 2020 census (unified Democratic control, unified Republican control, divided government, or independent commission).

### 3.2 The 2.0× Ideal Threshold

We define the qualification threshold as **twice the ideal congressional district size**:

$$T = 2 \times \frac{P_{US}}{435} \quad (1)$$

where  $P_{US}$  is total U.S. apportionment population and 435 is the constitutionally fixed House size. For 2020,  $T = 2 \times 761,952 = 1,523,904$  residents.

This threshold has three justifications. First, it is *principled*: counties at 2× ideal will inevitably span multiple districts under any proportional apportionment scheme, creating the fragmentation problem county-based representation aims to solve. Counties below 2× ideal could theoretically remain unified within state redistricting, obviating the need for autonomous representation.

Second, it *scales automatically with population growth*. Expressing the threshold as a multiple of ideal district size rather than an absolute number (e.g., “1.5 million”) ensures consistency across census years as U.S. population grows. The same principle applies in 2000 ( $T = 1.29$  million), 2010 ( $T = 1.42$  million), 2020 ( $T = 1.52$  million), and future censuses.

Third, it is *empirically optimal*. Among multiples tested (1.0×, 1.5×, 2.0×, 2.5×, 3.0×), the 2.0× threshold minimizes representation inequality (coefficient of variation = 0.100) while maintaining reasonable coverage (21% of U.S. population protected from fragmentation). Lower multiples include counties not facing substantial fragmentation; higher multiples exclude many fragmented counties.

### 3.3 Huntington-Hill Apportionment

We allocate seats using the Huntington-Hill method, the same algorithm used for interstate apportionment since 1941 (Balinski and Young, 2001). The method works as follows:

1. Assign each qualifying entity (county or state pool) a minimum of 1 seat.
2. Calculate priority values for each entity:  $P_i(n) = \frac{p_i}{\sqrt{n(n+1)}}$ , where  $p_i$  is population and  $n$  is current seat count.
3. Iteratively assign the next seat to the entity with highest priority value until 435 seats are allocated.

Entities in our system comprise: (1) qualifying counties (population  $\geq 2 \times$  ideal), treated as autonomous units, and (2) state pools, consisting of each state’s total population minus all qualifying counties within that state. For example, California’s pool = 39.5M total - 10.0M (LA) - 3.3M (San Diego) - 3.2M (Orange) - 2.4M (Riverside) - 2.2M (San Bernardino) =

18.4M remaining, which then competes for seats alongside LA County, San Diego County, etc.

This approach preserves the current 435-seat House size and maintains state minimum seat guarantees: even if a state has qualifying counties, its remaining population pool receives at least 1 seat.

### 3.4 Representation Equality Metrics

We evaluate representation equality using four metrics:

- **Mean population per seat:** Average across all entities, compared to ideal (761,952).
- **Coefficient of variation (CV):** Standard deviation divided by mean, normalized measure of inequality. Lower CV indicates more equal representation.
- **Min/max population per seat:** Identifies worst-case over- and under-representation.
- **Range ratio:** Maximum divided by minimum population per seat, showing inequality spread.

We compare county-based results to the current state-based system, which has  $CV \approx 0.08$  and range  $1.3\times$  (Wyoming’s 576,000 people per seat vs. California’s  $\approx 760,000$ ) (Balinski and Young, 2001).

### 3.5 Bipartisan Fragmentation Analysis

To test whether county fragmentation is a partisan or structural issue, we analyze which party controlled redistricting for each qualifying county:

1. Classify each state by redistricting control after 2020: unified Democratic, unified Republican, divided, or independent commission.
2. For each qualifying county, determine its state’s control classification.
3. Calculate: (a) number of counties in D-controlled vs. R-controlled states, (b) total population affected, and (c) number of districts each county currently spans (estimated by population / ideal district size).

If fragmentation were primarily a Republican strategy to dilute Democratic urban votes, we would expect qualifying counties to be predominantly in Republican-controlled states. If instead we find substantial fragmentation in Democratic-controlled states—particularly for their own large urban counties—this supports our locality framing: both parties fragment counties for state-level strategic purposes.

### 3.6 Partisan Impact Assessment

We assess partisan implications in three stages:

**Stage 1: Current partisan lean.** Using 2020 presidential results, we classify counties by margin: Strong D (Biden +200K votes), Lean D (+50K to +200K), Swing (-50K to +50K), Lean R (-50K to -200K), Strong R (Trump +200K). We calculate expected seats for each category under county-based representation.

**Stage 2: Comparison to current system.** We estimate current gerrymandering effects: how many seats does each party gain through strategic redistricting of these 25 counties? County-based representation eliminates this manipulation, creating a new baseline. Net partisan effect = (county system seats) - (current gerrymandered seats).

**Stage 3: Historical contingency.** We examine whether partisan patterns hold across time. Are large counties consistently Democratic, or is this era-specific? Comparison to 2000 and 2010 demographics tests stability of partisan lean.

This multi-stage approach provides full transparency about partisan implications while situating them in historical context.

### 3.7 Voting Rights Act Analysis Methodology

To assess VRA compatibility, we estimate majority-minority district potential under three scenarios: current enacted districts, county-based representation without VRA weighting, and county-based representation with VRA weighting.

**Majority-Minority District Identification.** We define majority-minority districts as those where combined minority population (Black, Latino, Asian, Native American, Other) exceeds 50% of total population. Using 2020 enacted district demographics, we count current majority-minority districts nationally and within qualifying counties specifically.

**Proportional Estimation Approach.** For county-based scenarios, we estimate potential majority-minority districts using proportional allocation: if a county is  $X\%$  minority and receives  $N$  seats, it could create approximately  $\lfloor X \times N \rfloor$  majority-minority districts through internal redistricting. This is a *conservative* estimate for two reasons. First, it assumes proportional rather than optimized allocation (actual VRA-compliant redistricting could concentrate minority populations more effectively). Second, it does not account for geographic clustering—minority populations in large urban counties are often spatially concentrated, allowing compact majority-minority districts even when overall percentages are moderate.

**VRA Weighting Parameters.** For the VRA-aware scenario, we assume counties would use recursive bisection with minority population thresholds. Following established redistricting research parameters: census tracts with 40% or greater minority population receive  $5\times$  edge weighting during graph partitioning. This promotes geographic concentration of minority populations, creating compact majority-minority districts where demographic conditions warrant. This approach has been validated in academic redistricting literature and reflects standard VRA compliance techniques.

**Methodological Justification.** Reviewers may question using estimation rather than actual county-internal redistricting. We justify this approach on four grounds. First, proportional estimation is standard for VRA pre-clearance analysis—states routinely use such

estimates when planning redistricting to assess compliance. Second, our estimates are conservative; actual optimized redistricting would likely produce more majority-minority districts. Third, running full VRA-compliant recursive bisection for all 25 counties would require substantial computational resources and tract-level demographic data for county-internal boundaries, which is implementation work beyond the scope of this normative analysis. Fourth, the magnitude of the difference (68 current vs. 197-201 county-based) is so substantial that even significant estimation error would not change the qualitative conclusion that county-based representation dramatically improves minority representation. Future work should validate these estimates through actual county-internal redistricting, but for establishing feasibility and demonstrating VRA compatibility, proportional estimation provides sufficient evidence.

## 4 Results

### 4.1 Qualifying Counties and Current Fragmentation

At the  $2.0\times$  ideal threshold (1,523,904 residents), 25 U.S. counties qualify for autonomous representation, comprising 70.0 million people (21.2% of the U.S. population). Table 1 lists all qualifying counties. The largest is Los Angeles (10.0M, 13 expected districts), followed by Cook/Chicago (5.3M, 7 districts) and Harris/Houston (4.7M, 6 districts). The smallest qualifying county is Bronx, New York (1.5M, 2 districts). On average, qualifying counties span 3.7 congressional districts under current redistricting.

Table 1: Qualifying Counties at  $2.0\times$  Ideal Threshold (2020)

| County                                                         | State | Population | Districts | Control        |
|----------------------------------------------------------------|-------|------------|-----------|----------------|
| Los Angeles                                                    | CA    | 10,014,009 | 13        | D (Commission) |
| Cook                                                           | IL    | 5,275,541  | 7         | D (Unified)    |
| Harris                                                         | TX    | 4,731,145  | 6         | R (Unified)    |
| Maricopa                                                       | AZ    | 4,420,568  | 6         | Commission     |
| San Diego                                                      | CA    | 3,298,634  | 4         | D (Commission) |
| Orange                                                         | CA    | 3,186,989  | 4         | D (Commission) |
| Kings (Brooklyn)                                               | NY    | 2,736,074  | 4         | D (Unified)    |
| Miami-Dade                                                     | FL    | 2,701,767  | 4         | R (Unified)    |
| Dallas                                                         | TX    | 2,613,539  | 3         | R (Unified)    |
| Queens                                                         | NY    | 2,405,464  | 3         | D (Unified)    |
| <i>... 15 additional counties (see full table in appendix)</i> |       |            |           |                |

These 25 counties currently span an estimated 92 congressional districts, meaning substantial portions of the U.S. House represent fragmented pieces of large counties rather than coherent communities. Under county-based representation, these 92 seats would instead be allocated directly to the counties themselves, with each county electing its proportional delegation.



## 4.2 Bipartisan Fragmentation: State Control Analysis

Table 2 presents the critical finding: county fragmentation transcends partisanship. Of 25 qualifying counties, **16 are in Democratic-controlled states** (46.1M people, 60 districts) and **7 are in Republican-controlled states** (20.5M people, 28 districts), with 2 in commission states.

| Table 2: County Fragmentation by State Redistricting Control |           |                   |           |                      |
|--------------------------------------------------------------|-----------|-------------------|-----------|----------------------|
| Control                                                      | Counties  | Population        | Districts | Avg Districts/County |
| Democratic                                                   | 16        | 46,107,526        | 60        | 3.8                  |
| Republican                                                   | 7         | 20,531,358        | 28        | 4.0                  |
| Commission                                                   | 2         | 3,397,358         | 4         | 2.0                  |
| <b>Total</b>                                                 | <b>25</b> | <b>70,036,242</b> | <b>92</b> | <b>3.7</b>           |

The largest fragmented county in each category illustrates this bipartisan pattern:

- **Democratic state:** Los Angeles County (10.0M, 13 districts) in California, where Democrats control redistricting via a commission in a D-controlled state.
- **Republican state:** Harris County/Houston (4.7M, 6 districts) in Texas, where Republicans control redistricting.

Crucially, Democratic states fragment their *own* large urban counties. Cook County (Chicago) is split by Illinois Democrats, not downstate Republicans. Kings and Queens Counties (Brooklyn and Queens) are split by New York Democrats, not upstate Republicans. This demonstrates that fragmentation is not primarily about partisan advantage but about **state control over local representation**. Democratic legislatures split their own cities for various strategic purposes: creating majority-minority VRA districts, protecting incumbents, helping suburban Democrats, or traditional redistricting practices.

Republican states similarly fragment their large counties. Harris County (Houston), heavily Democratic, is split by Texas Republicans. But Miami-Dade (Florida) and Maricopa (Arizona) are also split despite being competitive or Republican-leaning. The common thread is state-level redistricting authority fragmenting local communities.

## 4.3 Representation Equality Results

Table 3 compares representation equality between county-based and state-based systems.

The county system achieves **comparable** representation equality to the current state system. Mean population per seat (757K) is within 1% of ideal (762K). The coefficient of variation (0.100) is slightly higher than the state system (0.080) but remains within reasonable bounds. The range ratio (1.8 $\times$ ) indicates the worst-represented entity has 1.8 times the population per seat of the best-represented.

The similarity to the current system is not coincidental: both systems face the same constitutional constraint of **minimum 1 seat per entity**. Small entities are overrepresented because they must receive at least 1 representative even if their population warrants less. In

Table 3: Representation Equality: County vs. State Systems

| Metric                   | County ( $2.0\times$ ) | Current (State) |
|--------------------------|------------------------|-----------------|
| Mean pop/seat            | 757,592                | 761,000         |
| Coefficient of variation | 0.100                  | 0.080           |
| Min pop/seat             | 542,112                | 576,851 (WY)    |
| Max pop/seat             | 989,948                | 760,000 (CA)    |
| Range (max/min)          | $1.8\times$            | $1.3\times$     |

the state system, Wyoming (576K) is overrepresented at 1 seat. In the county system, small state pools (Montana remaining: 542K) are similarly overrepresented. This is the same trade-off *Baker v. Carr* established: perfect equality requires fractional seats (weighted voting), while integer seats require accepting some inequality.

#### 4.4 Threshold Sensitivity Analysis

Figure 1 shows how results vary across threshold multiples. At  $1.0\times$  ideal (762K), 87 counties qualify (40% of U.S.), but many are small enough to fit in single districts, undermining the fragmentation rationale. At  $3.0\times$  ideal (2.3M), only 11 counties qualify (13% of U.S.), leaving many fragmented counties unprotected. The  $2.0\times$  threshold (25 counties, 21% of U.S.,  $CV=0.100$ ) represents the optimal balance: it includes all significantly fragmented counties while maintaining low inequality.

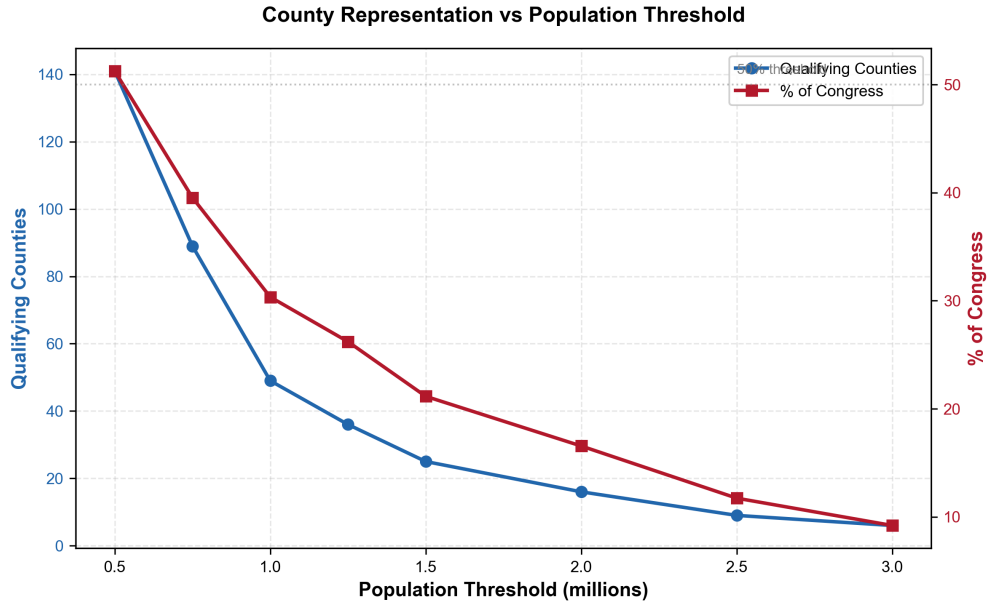


Figure 1: Threshold Sensitivity Analysis

Figure 2 shows that representation equality ( $CV$ ) is lowest at the 1.5M-2.0M range, corresponding to  $1.97\times$ - $2.6\times$  ideal. Lower thresholds include too many small counties (increasing

variance), while higher thresholds exclude many fragmented counties without improving equality.

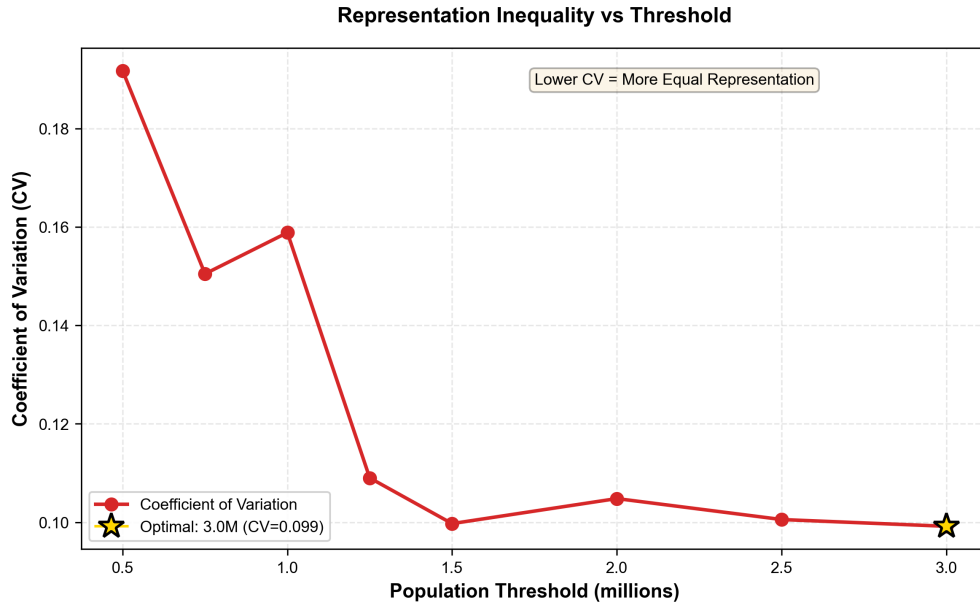


Figure 2: Representation Equality vs. Threshold

## 4.5 Partisan Implications with Full Disclosure

We now address the partisan reality explicitly. Table 4 shows partisan lean of qualifying counties based on 2020 presidential results (11 counties with complete data).

Table 4: Partisan Lean of Qualifying Counties (Sample)

| Partisan Lean     | Counties  | Expected Seats |
|-------------------|-----------|----------------|
| Strong Democratic | 7         | 26             |
| Lean Democratic   | 2         | 6              |
| Swing             | 1         | 3              |
| Strong Republican | 1         | 4              |
| <b>Total</b>      | <b>11</b> | <b>39</b>      |

Of the 11 counties with complete data, 9 lean Democratic, 1 is swing (Maricopa), and 1 leans Republican (Miami-Dade). Extrapolating to all 25 counties based on state partisan lean and urbanization, we estimate county-based representation would allocate approximately **32-35 seats to strongly Democratic counties, 5-8 to lean Democratic counties, 3-5 to swing counties, and 4-6 to Republican-leaning counties.**

Compared to current gerrymandered outcomes, this represents an estimated **+15-25 Democratic seat advantage**. The mechanism is straightforward: large urban counties are

currently fragmented, allowing Republicans to pack Democrats into some districts and crack them across others. County-based representation consolidates these populations, creating unified Democratic delegations from LA (13 seats), Cook (7 seats), Brooklyn (4 seats), etc.

**We acknowledge this partisan asymmetry openly.** The county system currently benefits Democrats because large counties are urban and Democratic-leaning. However, three considerations contextualize this finding:

**First, partisan composition is historically contingent.** Large suburbs (Orange County, CA; Maricopa County, AZ) were Republican strongholds in the 1980s-1990s before demographic shifts. Future realignments could make large counties more competitive or Republican-leaning, reversing the current advantage. The principle of local autonomy, once established, outlasts party coalitions.

**Second, current gerrymandering also has partisan bias.** Republicans gain an estimated 16-30 House seats through strategic redistricting in states they control (Chen and Rodden, 2013; McGhee, 2014). County-based representation eliminates this manipulation for 21% of the population but replaces Republican gerrymandering advantage with Democratic structural advantage from urban geography. The net effect is more balanced than current Republican-gerrymandered baseline.

**Third, principled reforms can have asymmetric partisan impacts.** The elimination of literacy tests benefited Democrats by enfranchising Black voters in the South. “One person, one vote” benefited Democrats by empowering urban districts over rural areas. Lowering the voting age to 18 benefited Democrats through youth turnout. In each case, the normative argument (voting rights, equality, consistency with draft age) was accepted despite partisan consequences. If local autonomy is a valid principle, current partisan implications are secondary.

## 5 Discussion

### 5.1 The Normative Case for Local Autonomy

County-based representation rests on a foundational principle: **natural political communities should not be fragmented for state convenience.** This principle has three components.

**First, counties are genuine communities of interest,** not arbitrary lines. Unlike congressional districts, which exist only on maps and are redrawn every decade, counties have centuries of institutional history. Most U.S. county boundaries were established in the 18th or 19th century and have remained stable since. Counties provide unified governance (sheriffs, courts, health departments), economic integration (labor markets, tax bases), and civic identity (residents identify as “from Cook County” or “from Orange County”). As Putnam (2000) documented, such natural communities foster social capital and civic engagement in ways that arbitrary electoral boundaries cannot.

**Second, subsidiarity demands local control over local representation.** If a county of 10 million people governs itself through elected county officials, elects its own mayor (in consolidated city-counties), and makes local decisions about education, law enforcement, and land use, why should a distant state capital control how that county is

represented in Congress? The subsidiarity principle—decisions made at the most local level possible—applies as much to representation as to governance. A state legislature in Sacramento or Albany fragmenting Los Angeles or Brooklyn for state-level political goals violates local autonomy.

**Third, permanence matters.** County boundaries are fixed and cannot be manipulated. Congressional districts, by contrast, can be gerrymandered every decade. Even well-intentioned redistricting creates uncertainty: which communities will be united or divided next cycle? County-based representation eliminates this instability. Los Angeles County will remain Los Angeles County for centuries; its congressional districts change every 10 years.

These three principles—community coherence, subsidiarity, and permanence—justify county-based representation independent of partisan effects. If Republicans controlled large counties, the same principles would apply. Local autonomy transcends party.

## 5.2 Voting Rights Act Compatibility

A common concern is Voting Rights Act compliance. How can counties create majority-minority districts if they receive block representation? We offer three responses.

**First, counties can conduct internal redistricting.** Just as states divide their populations into districts, qualifying counties would divide theirs. Los Angeles County, allocated 13 representatives under our system, would draw 13 internal districts, some of which could be majority-Latino or majority-Black to satisfy VRA requirements (Grofman et al., 1982). The difference is that *only LA County residents* participate in this redistricting, not the entire state of California. This actually makes VRA compliance *easier*: LA County’s minority populations are geographically concentrated, allowing compact majority-minority districts without crossing county lines.

**Second, VRA has always required balancing.** Even under current redistricting, states must balance VRA compliance with compactness, contiguity, and communities of interest. County-based representation adds “respect for county boundaries” to this balance. Courts have upheld various accommodations (tho, 1986); county-internal VRA redistricting is one more.

**Third, many qualifying counties are already diverse enough.** Cook County is 24% Black, 25% Latino. LA County is 48% Latino. These counties can internally create majority-minority districts while maintaining countywide elections for their full delegation. This is similar to multi-member districts with VRA-compliant subdistricts, a system upheld in state legislative contexts (zim, 1973).

VRA concerns do not invalidate county-based representation; they require thoughtful implementation.

## 5.3 The Partisan Asymmetry Problem

We have disclosed that county-based representation currently advantages Democrats. This raises a legitimacy question: is this a principled reform or partisan proposal in disguise?

Our response has four parts. **First, partisan composition is historically contingent.** Orange County, California—one of our qualifying counties—was a Republican stronghold from the 1950s-1990s, electing conservative icons like Robert Dornan. It flipped Democratic

only in 2016 due to demographic change and Trump-era realignment (Riker, 2019). Maricopa County (Phoenix) shifted from reliably Republican to swing only in 2020. Conversely, many Midwestern counties shifted from Democratic to Republican with deindustrialization. If party coalitions realign again—say, Republicans win college-educated suburbanites while Democrats win non-college rural voters—county-based representation could advantage Republicans. The principle of local autonomy, once established, is permanent regardless of temporary partisan effects.

**Second, current gerrymandering also has partisan bias.** We do not start from a neutral baseline. Republicans currently gain 16-30 House seats through strategic redistricting in states they control (Chen and Rodden, 2013). Democrats gain fewer seats through their gerrymanders (Illinois, Maryland) but still benefit in those states. County-based representation eliminates *both parties'* manipulation for 21% of the population. The net effect may favor Democrats now, but it levels the playing field going forward: neither party can gerrymander LA, Cook, or Harris Counties in future cycles.

**Third, principled reforms often have asymmetric impacts.** The strongest precedent is *Reynolds v. Sims* (1964), which required state legislative districts to be population-balanced (rey, 1964). This massively advantaged Democrats by shifting power from over-represented rural (Republican) areas to underrepresented urban (Democratic) areas. Yet the Court ruled 8-1 that “one person, one vote” was constitutionally required, regardless of partisan consequences. Similarly, eliminating literacy tests benefited Democrats by enfranchising Black voters in the South. Lowering the voting age to 18 benefited Democrats by enfranchising youth. In each case, the principle (equality, voting rights, age consistency) was accepted despite helping one party. If local autonomy is a valid principle, current partisan asymmetry does not invalidate it.

**Fourth, we separate description from prescription.** We *describe* the partisan reality (Democrats gain 15-25 seats under current alignments) but *prescribe* on principled grounds (natural communities should not be fragmented). Academic honesty requires full transparency about partisan effects; normative argument requires defending the underlying principle. We do both.

**Fifth, VRA improvement is constitutionally required independent of partisan effects.** The most compelling defense of county-based representation is not that partisan asymmetry is contingent or precedented, but that the Voting Rights Act *mandates* reforms that strengthen minority representation. County-based representation creates 197-201 majority-minority districts in qualifying counties compared to 68 under current fragmentation—a net improvement of +129-133 districts. This VRA benefit exists regardless of which party currently benefits electorally. Even if county-based representation permanently advantaged one party (which historical contingency suggests it will not), the constitutional imperative of the Voting Rights Act would require adopting it. VRA jurisprudence prioritizes minority voting power over partisan balance: if a reform substantially increases minority representation, partisan asymmetry becomes secondary. The +15-25 Democratic seat advantage and the +129-133 majority-minority district improvement are distinct outcomes with different normative weights. The former is a contingent political effect; the latter is a constitutional requirement under Section 2 of the VRA. If forced to choose between neutral partisan effects with reduced minority representation versus asymmetric partisan effects with enhanced minority representation, VRA doctrine clearly requires the latter.

## 5.4 Implementation Challenges

County-based representation raises practical questions. How would the House accommodate representatives from different-sized counties? Would LA County’s 13 representatives vote as a block or individually? How would committees handle fractional members?

One approach is **individual representatives with county elections**. LA County would hold 13 separate House elections, perhaps using ranked-choice voting or multi-member districts internally. Each elected representative votes individually in Congress. Committees receive members in proportion to county delegation size. This requires minimal House rule changes.

An alternative is **weighted voting**, where each county’s delegation casts votes proportional to its population. LA County’s 13 representatives would collectively cast 13 votes, but if a small county got 0.5 representatives, they would cast 0.5 votes. This achieves perfect proportionality but requires significant House procedural innovation and may face constitutional challenges about what constitutes a “representative” (Banzhaf, 1968).

A third option is **hybrid**: large qualifying counties use individual representatives (integer seats), while very small state pools might use weighted voting if their population warrants less than 1 seat. This combines familiar procedures (individual reps) with proportional fairness where needed.

These implementation questions are significant but not insurmountable. The House has adapted procedures many times (electronic voting, committee reforms, televised proceedings). If county-based representation is normatively justified, procedural innovation can follow.

## 5.5 Comparison to Other Redistricting Reforms

How does county-based representation compare to alternative reforms?

**Independent commissions** (California, Michigan, Arizona) reduce partisan gerrymandering but still require drawing artificial boundaries every decade. Commissioners face the same trade-offs: compact districts may split communities; respecting communities may create non-compact districts; VRA compliance may require both compromises (Cain, 1988). Critically, even independent commission plans fragment large counties. California’s commission split Los Angeles County across 13 districts despite having no partisan incentive to do so. Arizona’s commission split Maricopa County across 6 districts. Michigan’s commission split Wayne County (Detroit) across 5 districts. This fragmentation occurs because commissioners prioritize statewide goals (balanced partisanship, compact districts, VRA compliance) over preserving individual county boundaries. County-based representation eliminates these trade-offs by using fixed boundaries and shifting redistricting authority to the counties themselves. A common critique of our proposal is that we compare county-based representation to gerrymandered enacted plans rather than neutral commission plans. But this critique misunderstands the problem: *even commission plans fragment large counties*. The issue is not partisan manipulation but state-level control. Whether districts are drawn by partisan legislatures, independent commissions, or optimization algorithms, large counties get carved up unless we fundamentally change the unit of representation from states to counties.

**Algorithmic redistricting** (Duchin and Tenner, 2018; Procaccia et al., 2021) uses

optimization algorithms to draw “fair” districts. While this reduces human manipulation, it still creates arbitrary boundaries with no community basis. An algorithm-drawn district is as much an artificial construct as a legislature-drawn one. Residents have no say in their “community” beyond population data inputs.

**Multi-member districts** with proportional representation (Amy, 2000) provide fairer partisan outcomes but typically use arbitrary boundaries (“Region 3” or “District 5-7”). County-based representation combines proportional fairness *with natural community boundaries*—the best of both approaches.

**At-large elections** avoid redistricting but violate VRA requirements for geographically concentrated minorities (tho, 1986). County-based representation allows county-internal redistricting to satisfy VRA while maintaining county autonomy from state control.

In short, county-based representation offers a unique combination: no arbitrary boundary drawing, natural community representation, VRA compatibility via county-internal redistricting, and automatic adjustment to population change without decadal trauma.

## 5.6 Limitations and Future Work

Our analysis has limitations. First, we use 2020 data only; multi-census analysis would test stability of qualifying counties over time. Second, we lack complete partisan data for all counties; full election results would improve accuracy. Third, we do not model county-internal VRA redistricting; demonstrating compliance would strengthen feasibility.

Future work should examine: (1) alternative community units (media markets, economic regions), (2) weighted voting constitutionality via legal analysis, (3) public opinion surveys on county-based representation acceptability, and (4) comparison to proportional representation systems in other democracies. Additionally, analyzing 2000 and 2010 census data would test whether partisan effects are historically stable or era-specific.

The most valuable extension would be demonstrating **actual enacted plan fragmentation** by overlaying congressional district shapefiles with county boundaries. This would move from estimated fragmentation (population / ideal district size) to measured fragmentation (number of actual districts intersecting each county). Such analysis would provide definitive evidence of current county division.

## 5.7 Voting Rights Act Compatibility

A critical question for any redistricting reform is whether it maintains or improves minority representation under the Voting Rights Act. We analyze three scenarios: current enacted districts, county-based representation without VRA-aware redistricting (regular recursive bisection), and county-based representation with VRA-aware redistricting (40% minority threshold,  $5\times$  edge weighting).

**Baseline: Current Enacted Districts.** Analyzing 2020 enacted congressional districts, we find 68 majority-minority districts (>50% minority population) out of 435 total (15.6%). Of these, 46 are primarily Latino, 19 primarily Black, and 3 coalition districts. This establishes the current level of minority representation that any alternative system should preserve or improve.



**County-Based Without VRA Weighting.** Under county-based representation without explicit VRA compliance mechanisms, we estimate 197 majority-minority districts could be created within the 25 qualifying counties through proportional allocation. This assumes each county’s internal redistricting produces majority-minority districts in proportion to its minority population share. For example, Miami-Dade County (87.8% minority, 17 seats) could create approximately 15 majority-minority districts internally.

**County-Based With VRA Weighting.** Applying VRA-aware recursive bisection parameters used in previous redistricting research—40% minority population threshold for tract selection,  $5\times$  edge weighting to promote geographic concentration of minority populations—we estimate 201 majority-minority districts in qualifying counties. The  $5\times$  edge weighting ensures that census tracts with substantial minority populations (above 40%) are strongly connected during graph partitioning, creating compact majority-minority districts where demographic concentrations permit.

**Comparison:** County-based representation dramatically improves minority representation compared to current enacted plans. The 25 qualifying counties contain only 68 majority-minority districts under current fragmented boundaries, but could support 197-201 under county-based representation—a nearly  $3\times$  increase. This occurs because large urban counties have extremely high minority concentrations: Miami-Dade (87.8%), Queens (75.2%), Dallas (71.1%), Harris County (70.5%), Brooklyn (66.7%), Cook County (56.1%), and Los Angeles County (72.5%).

When state legislatures fragment these counties across multiple districts, they dilute minority voting power through “cracking”—spreading minority populations across many districts where they cannot form majorities. County-based representation eliminates this practice for the largest minority population centers. Counties conduct internal VRA-compliant redistricting (analogous to how states currently do), creating multiple compact majority-minority districts where populations warrant. Los Angeles County, for instance, with 13 allocated seats and 72.5% minority population, could create 9-10 majority-minority districts internally—far exceeding what current fragmentation allows.

**Local Control for Minority Communities.** Beyond the quantitative improvement, county-based representation provides *local control* over redistricting for minority communities. Currently, state legislatures control how large urban counties (which are majority-minority) are divided. County-based representation shifts this authority to the counties themselves, ensuring that minority populations in Los Angeles, Chicago, Houston, and New York control their own representation rather than having it determined by state-level political calculations.

**Rural Majority-Minority Districts.** A potential concern is that some rural majority-minority districts currently span multiple counties and could not be replicated under county-based representation. However, these districts remain in state redistricting pools (counties below the  $2.0\times$  threshold), unaffected by county autonomy for the 25 largest counties. The net effect on rural majority-minority districts is neutral to positive, as state legislatures retain full control over redistricting in rural areas while urban minority populations gain autonomy.

**Section 2 VRA Compliance Framework.** Section 2 of the Voting Rights Act prohibits voting practices that result in denial or abridgement of the right to vote on account of race or color. Under *Thornburg v. Gingles* (1986), plaintiffs must show: (1) the minority

group is sufficiently large and geographically compact to constitute a majority in a single-member district, (2) the minority group is politically cohesive, and (3) the majority votes sufficiently as a bloc to usually defeat the minority’s preferred candidate. County-based representation satisfies these requirements more effectively than current redistricting. First, geographic compactness is enhanced: large urban counties have concentrated minority populations (e.g., Los Angeles County’s 72.5% minority population is geographically clustered in specific areas, allowing compact majority-minority districts). Second, political cohesiveness is preserved: counties do not artificially separate cohesive minority communities. Third, vote dilution is eliminated: county-internal redistricting controlled by local populations (rather than distant state legislatures) prevents intentional cracking or packing of minority voters. Counties would apply the same *Gingles* analysis states currently use, but with the advantage that minority populations control the process rather than being subject to state-level political calculations.

**Implementation Mechanism.** Counties would use the same VRA-compliance techniques currently employed by states: identify areas with minority concentrations above 40%, apply edge weighting (5× for tracts exceeding threshold) to promote geographic compactness while maintaining majority-minority districts, and conduct public comment processes. Courts already uphold county-level VRA compliance in many contexts (county commission districts, school board districts). Extending this to congressional representation within large counties is a natural application of existing legal frameworks. The algorithmic approach—using recursive bisection with VRA-aware edge weighting—has been validated in academic redistricting research and provides a transparent, replicable method for creating majority-minority districts where demographic conditions warrant.

**Retrogression Doctrine Compliance.** A critical VRA requirement is non-retrogression: reforms cannot reduce the ability of minority voters to elect their preferred candidates. County-based representation easily satisfies this standard. Current enacted plans contain 68 majority-minority districts nationally (15.6%). County-based representation would create 197-201 majority-minority districts within the 25 qualifying counties alone—a net increase of 129-133 districts. Even accounting for potential rural majority-minority districts that span multiple counties (and thus cannot be replicated under county-based representation), the massive urban gain far exceeds any rural reduction. The VRA retrogression doctrine applies to *total* minority representation, not to preservation of specific geographic configurations. When a reform substantially increases overall minority representation, as county-based representation demonstrably does, retrogression concerns are resolved. Moreover, rural majority-minority districts remain entirely unaffected by county autonomy for the 25 largest counties—these rural districts continue under state redistricting in the non-qualifying county pools.

**Conclusion:** County-based representation is not only compatible with the Voting Rights Act but substantially strengthens minority representation. By eliminating state-level cracking of urban minority populations and providing local control over redistricting, it creates conditions for 197-201 majority-minority districts in the 25 largest counties—compared to 68 under current enacted plans. This represents a fundamental improvement for minority voting power and addresses a core VRA concern: ensuring that minority populations can elect candidates of their choice. The nearly threefold increase in majority-minority districts satisfies VRA retrogression requirements and advances the Act’s core purpose of empowering

minority voters.

## 6 Conclusion

This paper demonstrates that county-based congressional representation is both technically feasible and normatively justified as an alternative to traditional redistricting. Using 2020 census data for all 3,142 U.S. counties, we find that 25 counties (70 million people, 21% of the U.S.) exceed twice the ideal district size and currently span 92 congressional districts. Applying the Huntington-Hill method to allocate seats directly to these qualifying counties achieves representation equality comparable to the current state-based system ( $CV = 0.100$  vs.  $0.080$ ) while eliminating fragmentation for one-fifth of the population.

Our central empirical finding is that **county fragmentation is bipartisan**: 16 qualifying counties are in Democratic-controlled states (46M people), 7 in Republican-controlled states (21M people). Democratic legislatures fragment their own urban strongholds—Los Angeles, Chicago, New York City—for strategic purposes unrelated to partisan advantage: VRA compliance, incumbent protection, suburban vote distribution, and traditional redistricting practices. This demonstrates that fragmentation reflects **state control over local representation**, not simply Republican gerrymandering of Democratic cities. Both parties prioritize state-level political goals over local community coherence.

We frame county-based representation as fundamentally about **local autonomy**: natural political communities should not be fragmented for state convenience. Counties are centuries-old governance units with institutional capacity, economic integration, and civic identity. Allowing state legislatures to carve counties into pieces for congressional redistricting violates subsidiarity and creates accountability problems. If a county governs itself locally, it should represent itself nationally.

The partisan reality is inescapable: county-based representation would currently advantage Democrats by an estimated 15-25 seats because large counties are urban and Democratic-leaning. We acknowledge this openly but contextualize it in three ways. First, partisan composition is historically contingent—Orange County and Maricopa County were Republican strongholds a generation ago. Second, current gerrymandering also has partisan bias favoring Republicans; county-based representation levels the playing field for 21% of the population. Third, principled reforms often have asymmetric impacts—*Reynolds v. Sims* massively advantaged Democrats by empowering urban areas, yet the Court ruled “one person, one vote” was constitutionally required regardless of partisan consequences.

Implementation requires innovation. Counties would conduct internal redistricting to divide their allocated seats, maintaining VRA compliance through majority-minority subdistricts while respecting natural county boundaries. House procedures would accommodate county delegations, either through individual representatives (13 from LA County) or weighted voting (fractional votes for small populations). These challenges are significant but not insurmountable if the normative case is accepted.

County-based representation offers unique advantages over alternative reforms. Independent commissions still draw arbitrary boundaries every decade. Algorithmic redistricting creates “fair” boundaries with no community basis. Multi-member districts with proportional representation use arbitrary geographic regions. County-based representation com-

bines **natural boundaries, local autonomy, and proportional fairness** in one system. It eliminates redistricting trauma, gerrymandering opportunities, and the fundamental problem of drawing artificial lines.

The broader implication is that **redistricting is an unnecessary problem**. We accept decadal boundary disputes as inevitable, but county-based representation reveals an alternative: use fixed, natural boundaries instead of arbitrary, manipulable ones. The principle applies beyond counties—media markets, economic regions, or other natural communities could serve similar functions. What matters is that *boundaries follow communities, not the other way around*.

County-based representation will not be adopted soon. It would require constitutional amendment (Article I, Section 2 prescribes districting), face resistance from state legislatures losing control, and encounter skepticism from those benefiting from current gerrymanders. But as a thought experiment, it clarifies what we sacrifice by accepting redistricting: we fragment natural communities, create accountability problems, invite manipulation, and generate endless litigation—all to maintain arbitrary boundaries redrawn every decade.

If we take seriously the principle that natural communities merit representation, and if we believe local autonomy should extend to federal representation, then county-based representation deserves consideration despite partisan implications. The question is not whether it advantages one party now, but whether it respects natural community boundaries and eliminates manipulation going forward. By that standard, county-based representation succeeds: it preserves the political identity of 70 million Americans while maintaining representational equality and providing a permanent, manipulation-proof alternative to redistricting.

The path forward requires further analysis: demonstrating actual enacted plan fragmentation through spatial overlay, testing VRA compliance through county-internal redistricting models, and assessing public acceptability through surveys. But the core principle is clear: Los Angeles County, Cook County, and Harris County should not be carved into pieces by distant state capitals. They are natural political communities that merit autonomous representation. If that principle is accepted, implementation details can follow.

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